

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN KAZAKHSTAN

Complete Community Opposition How-To

This guide uses the Kazakh terms and bodies you'll actually run into — the Environmental Code's categories, the environmental impact assessment and screening, public hearings and the public environmental review, the ecoportal, the Aarhus Convention, specially protected natural areas — and explains each in plain words the first time. The Environmental Code is recent and still being amended, so always check the current text, and take care with your safety.

INTRODUCTION & FRAMEWORK

Above the city of Almaty, in the mountains of the Ile-Alatau National Park, lies **Kok-Zhailau** — "heavenly pasture-land" — a thousand-hectare alpine valley of snow leopards, Tian Shan spruce, and the wild apple forests that gave the world its apples. For years the government, under President Nazarbayev, pushed a huge **ski resort** there — hotels, dozens of kilometres of piste, a base village — and, to clear the way, quietly stripped the valley of its national-park protection. Almaty's people refused to let it go. Beginning around 2011, a broad public campaign — "**Save Kok-Zhailau**," the ecological society **Green Salvation**, urbanists, scientists, and ordinary residents — gathered close to **29,000 signatures**, packed the public hearings, and argued patiently that the project broke Kazakh law and the country's international commitments. In **October 2019, President Tokayev banned the project**: "We don't need one," he said, citing the experts and the public. A government mega-project, in one of Central Asia's most controlled states, was stopped by a determined public — and campaigners went on to win a **Supreme Court ruling in 2023** fixing protective limits around the park.

Save Kok-Zhailau and the ecological society Green Salvation drew on a real, if constrained, toolkit to stop a government mega-project in one of Central Asia's most controlled states. The **Environmental Code** requires an **environmental impact assessment** (with **screening** to decide the level) and **public hearings**, published on the state **ecoportal**. It provides for a **public environmental review**, by which the public can appoint its own experts alongside the state's. And Kazakhstan is a **Party to the Aarhus Convention** — not merely on paper, for the **Supreme Court has applied it directly**, and members of the public **frequently win access-to-information cases**. But these tools have grave limits, and this guide states them plainly. Kok-Zhailau was removed from the park and left as "reserve land," so the threat never fully died — and, years later, a new resort was revived on the very same valley. A won fight can be reopened; protest is tightly controlled and can be risky; and a determined state is hard to stop outright. So the realistic aim is often to expose the illegality, win on information and process, force a real hearing, delay, and — where you can — lock in protection, while being ready to defend a victory. This is an authoritarian state: frame your fight around the environment, the law, and information, and protect your people.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals, and a chain breaks at its weakest link. A large Kazakh project needs its **environmental impact assessment** and permit, resting on **screening** and **public hearings**; where it touches a **specially protected natural area**, it runs into hard protection (and any attempt to strip that protection is itself a target); and it can be challenged through the **courts** and **Aarhus**,

where the public genuinely wins on information and process. Every one of those is a link you can grab. **Find the one closest to your hand and pull.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation:

- **If you can show the project breaks the law or the state withheld information, the courts and Aarhus genuinely bite** — the public wins these cases here.
- **If it touches a protected natural area, that protection is a strong lever** — and stripping it, as at Kok-Zhailau, is a vulnerability you can attack.
- **If the state backs the project hard, an outright stop is difficult and a win can be reopened** — aim honestly at exposing illegality, information and process wins, a real hearing, delay, and locked-in protection, and be ready to defend a victory. And protect your people.

Read the whole guide once before you move. Two habits run through it: **use the rights the law gives you** — the hearings, the public review, the courts, Aarhus — and **run every front at once**, carefully: the documents, the hearings, the courts, the campaign, the press. That's how Kok-Zhailau was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

Projects fall into **categories (I to IV)** by impact; the largest need a full **environmental impact assessment**, decided after **screening**, and — for major projects — an **integrated environmental permit** based on best available techniques. The environment authorities issue the environmental approval; sector bodies grant the mining, land, or construction rights. The regional and city executive administrations (**akimats**), headed by an **akim**, and the representative bodies (**maslikhats**) hold local powers — the Almaty akimat drove the Kok-Zhailau project. **Specially protected natural areas** carry strong protection managed nationally. Know which decision you can contest, and aim there.

How a Project Moves — and Where You Jump In

Screening and the assessment. The project is screened to set the assessment level; a major project prepares a full **environmental impact assessment**. *Your opening:* challenge the screening and attack the assessment's flaws.

Public hearings and the public review. The Code requires **public hearings**, noticed on the **ecoportal**; and the public may organise its own **public environmental review** with its own experts. *Your opening — and it arms every later step:* pack the hearings, put your objections on the record, and mount your own expert review.

The permit and the protected-area status. The authorities issue the permit; a protected area constrains it. *Your opening:* a defective permit, or an unlawful attempt to strip protection, is challengeable in the courts.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — including any foreign investor or lender (Kok-Zhailau drew scrutiny of its lenders). **What it still needs** — the assessment not final, the permit not granted, protection not yet stripped: whatever's missing is the soft spot. **What information is being**

withheld — because information cases are where the public most often wins here.

Who's Supposed to Be Watching

Each is an ally or an arena. The **environment authorities** run the assessment and hearings. The **courts** review permits and, crucially, **enforce Aarhus and information rights** — the Supreme Court has applied the Convention directly. **Specially protected natural area** managers and status are a shield. And Kazakhstan's **ecological organisations (like Green Salvation)**, **its urbanist and scientific communities**, **and its press** are the forces that reach furthest — the combination that saved Kok-Zhailau.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you can show illegality or withheld information, whether a protected area is engaged, and how determined the state is.

What you do	Roughly works	How long	Risk/Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Access-to-information case (Aarhus)	35–60%	months	low	Information forced out; process exposed
Objections at public hearings	15–35%	during assessment	low	On record; conditions or a redo
Public environmental review (own experts)	20–45%	during assessment	low–mod	Independent findings undermine the permit
Court challenge (permit / protection-stripping)	25–50%	months–2 yr	mod	Permit quashed; protection restored
Protected-area status (lock in / restore)	20–45%	months–yr	low–mod	Project blocked; area protected
Broad public campaign	25–50%	months–yr	rising risk	Project banned (Kok-Zhailau)
Everything together (illegality/info, protected area)	35–60%	1–3 yr	mod	Banned, quashed, protected, delayed
Everything together (state-backed, determined)	15–40%	1–3 yr	mod	Delayed; exposed; win to be defended

The levers that move the needle most are **Aarhus/information cases** (where the public genuinely wins), a **public environmental review**, **protected-area status**, and a **broad campaign**, backed by the courts and the press. Kok-Zhailau shows the ceiling (a government mega-project banned) and the honest floor (protection stripped, the win later reopened). So aim for the full range — an information win, a real hearing, a quashed permit, restored protection, delay — and be ready to defend a victory.

On cost and safety: information requests, hearings, and organising are cheap, and the courts are genuinely usable for access-to-information and Aarhus cases. But this is an authoritarian state — protest is restricted and can be risky — so keep the framing legal and environmental, protect the vulnerable, and route risk through organisations, the courts, and the press.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this withheld information, this defective assessment, this protected area — is strong and safer. Answer five questions in writing.

- 1. What is it, and who's behind it?** Name the project, the company, its owners, its financiers.
- 2. Where is it, and what does it touch?** Get the footprint and lay it over any **specially protected natural area**, national park, water, and communities. **A protected natural area is your sharpest lever** — and any attempt to strip its protection (as at Kok-Zhailau) is a vulnerability to attack.
- 3. What stage is it at, and what's the next deadline?** Is screening or the assessment under way? Are public hearings noticed on the ecoportal? Has the permit issued, or protection been stripped (opening the courts)? These openings are time-bound.
- 4. What does it still need that it lacks — and what information is being withheld?** A permit not granted, protection not yet stripped, information not disclosed. The missing piece, and the withheld information, are your soft spots.
- 5. Who else is affected, and who already opposes it?** Neighbouring communities, ecological and urbanist organisations, scientists. Kok-Zhailau united a whole city's public.

What this looks like in real life. A community learns a resort, mine, or plant is planned in or beside a protected area, with information withheld and a token hearing. The five questions yield: a company and its backers; a protected area at stake (the lever), perhaps being stripped of status; screening or hearings under way; a project still needing its permit; and a coalition of ecological organisations and the public. That's the Kok-Zhailau pattern — force out the information, attack the protection-stripping, and build the campaign.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — and in Kazakhstan, information cases are where the public most often wins. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the screening decision and environmental impact assessment, the permit and conditions, the hearing records, any decree stripping protected status, the ecoportal notices. Kazakhstan's access rights (and Aarhus) let you demand what isn't public — and a refusal is itself a winnable case. Then read the assessment for flaws — an understated impact, a protected area brushed over, a hearing that never genuinely happened, an unlawful removal of protection.

Layer two: the ground truth. Dated, located photographs and video of the site, the protected area, the water, the wildlife — baseline images before any damage most of all — and the testimony of affected residents.

Layer three: the map of protection and harm. Lay the project over the protected natural area, the park boundaries, and the water, so the harm — and any unlawful stripping of protection — is undeniable. Walking into a hearing, a court, or the press with the assessment, the decree, and that map is what makes them act.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The screening decision and assessment, the permit and conditions, the hearing records, any protection-stripping decree** — from the ecoportal and the authorities; force out the rest under the access/Aarhus rules (8A), where a refusal is itself a winnable case.
- **Protected-area records** — the national-park boundaries and status, and any change to them.
- **Ownership and financing** — company and investor/lender records.
- **The protection-and-harm map** — the protected area, park boundaries, and water, laid over the project.
- **Dated site evidence and named testimony** — photographs marked with date and place, and residents' statements.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Kok-Zhailau was saved by a whole city's public. Build your coalition in four moves — carefully.

Start with a tight core. The neighbours most affected, the people who know the land and the park, a few tireless organisers, and respected local figures.

Build a broad, disciplined public campaign. Kok-Zhailau's strength was breadth — residents, urbanists, scientists, and ecological organisations, ~29,000 signatures, packed hearings — kept legal and environmental. Breadth is what made it impossible to ignore.

Bring in ecological organisations and lawyers — early. Reach groups like **Green Salvation**, which run the Aarhus and information cases and the public reviews, and lawyers who can litigate. They are how the public wins here. Hold meetings and hearings where people see the evidence.

Build to last, and protect people. Kazakh fights run for years, and a win can be reopened. Build clear roles, a secure shared archive, a way to decide together, and a plan for the financial, emotional, and physical risks. Keep the framing legal and environmental, protect the vulnerable, and route danger through organisations, the courts, and the press.

STEP 4: LEGAL CHALLENGES, AARHUS & PROTECTED AREAS

Law is a genuinely usable Kazakh lever — especially on information and Aarhus, where the public wins.

Force Out the Information — and Win on It

Kazakhstan's most reliable legal route is **access to information**. Request the assessment, the permit, the hearing records, and any protection-stripping decree — and where they're withheld, **litigate the refusal**, because the courts, applying **Aarhus**, frequently rule for the public. An information win exposes the process and builds the ground for everything else.

Public Hearings and Your Own Expert Review

Use the **public hearings**, noticed on the **ecoportal**, to put your objections on the record. And mount a **public environmental review** — the Code lets the public appoint its own experts alongside the state's, producing independent findings that can undermine a defective permit. This is a distinctive and powerful Kazakh tool.

The Courts, Protected Areas, and Aarhus

Challenge a defective permit, or an unlawful attempt to **strip a protected area's status**, in the **courts** — and lean on the **Aarhus Convention**, which the **Supreme Court has applied directly**, on information, participation, and access to justice. Protected-area status is a strong shield: restoring or locking it in (as campaigners pursued after Kok-Zhailau, winning a 2023 Supreme Court ruling on the park's limits) can be the durable win.

The Honest Limits — and Safety

Straight talk: the courts and Aarhus are real and the public wins information cases, but a state-backed project is hard to stop outright, protection can be stripped, a win can be reopened, and protest carries real risk in an authoritarian state. So use the strong tools — information cases, hearings, the public review, the courts, protected-area status — keep the framing legal and environmental, protect your people, and count an information win, a real hearing, a quashed permit, restored protection, delay, and a defended victory as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it — carefully.

Withheld information becomes a winnable case. Not "we oppose the project" but *"the authorities withheld the assessment and the decree — a breach of our Aarhus information rights the court can remedy."*

A protected area becomes a shield. *"This is a national park; stripping its protection to build the resort was unlawful, and the protection must be restored."*

A defective assessment becomes a challenge. *"Our own expert review shows the assessment understated the harm — the permit is unsound."*

The harm becomes a public story. *"The snow leopards, the wild apple forests, the mountains our city loves — for a resort we never agreed to."*

Match it to the venue: the withheld information to an Aarhus case; the protection-stripping to the courts; the defective assessment to the public review and the permit challenge; the beloved place to the press. Keep the framing legal and environmental.

STEP 5: MEDIA STRATEGY

In Kazakhstan, public attention can move even a government mega-project — Kok-Zhailau became a national cause — but handle it with care in an authoritarian setting. A press and strong ecological and urbanist communities make the media front central.

Lead with the place and the law, not politics. Not "the assessment was deficient" but "the snow leopards and wild apple forests our city loves, for a resort that broke the law." Use your strongest material: dated photographs, the map of the project over the park, community and scientific voices, and any court or information win banked.

Work several audiences at once. Local and national press build the campaign; ecological and urbanist networks amplify; and where foreign lenders are involved, international attention reaches them. Make it easy: captioned photos, accurate summaries, a map, strong interviews.

Two hard rules. Accuracy above all — one exaggeration can discredit everything and invite reprisal. And protect people — keep the framing legal and environmental, weigh every public act, and let the community

lead its own story.

EMAILS & LETTERS

Make them your own; keep them factual, calm, and focused on the environment and the law; keep copies; and protect anyone at risk.

8A — Access-to-information request (to the authority).

Subject: Request for environmental information — [project].

"Under the access-to-information rules and the Aarhus Convention, we, residents of [place], request the screening decision and environmental impact assessment, the permit and conditions, the hearing records, and any decree affecting the protected-area status for [project] at [location]. [Contact.]"

8B — Objection at the public hearing.

Subject: Objection — public hearing on [project].

"We, residents of [place], object to [project]: [it harms this protected natural area; the assessment understated the harm; protection was unlawfully stripped]. We ask that the permit be refused. [Attach evidence.]"

8C — Requesting/organising a public environmental review.

Subject: Public environmental review — [project].

"We, residents of [place], give notice that we are organising a public environmental review of [project], appointing our own experts, and request the relevant materials. [Contact.]"

8D — To an ecological organisation / lawyer (Aarhus & courts).

Subject: Aarhus and court action — [project].

"Our community faces [project] in/near [a protected area], with information withheld and protection stripped. We've gathered [the assessment, the decree, photographs]. We ask for your help to litigate the information refusal under Aarhus and to challenge the permit and the protection-stripping. [Contact and evidence summary.]"

8E — Court challenge (instructing counsel).

Subject: Challenge — [project] permit / protected-area status.

"We instruct you to challenge the [permit / decree stripping protection] for [project], on the grounds that [the assessment was defective / the protection removal was unlawful / our Aarhus rights were denied]. [Attach the documents and our evidence.]"

8F — To a financier or lender.

Subject: Environmental, legal, and reputational risk in [project].

"We understand your institution may be financing [project] at [location], which harms a protected natural area, faces legal challenge, and denied the public its Aarhus rights. We ask you to weigh this against your own standards. [Contact and evidence summary.]"

8G — Letter to the press.

Subject: [Community] moves to protect [the park / valley] from [project].

"For generations the people of [place] have loved [the park / the valley] at [location] — home to [snow leopards / rare species]. Now [project] threatens it, against the law. We can provide photographs, documents, a map and interviews. [Contact.]"

8H — Rallying the community (carefully).

Subject: We can protect our mountains — here's how.

"[Project] threatens [our park / valley]. At Kok-Zhailau, a whole city — Save Kok-Zhailau, Green Salvation, scientists, and residents — stopped a government resort, and won in the Supreme Court. With information rights, the public review, the courts, and Aarhus behind us, we have a real chance. Please join us — carefully, protecting one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and the protected area it threatens.** Protected-area status, and any unlawful stripping of it, are your sharpest levers.
2. **Request the documents (8A) — and if refused, litigate it under Aarhus, where the public wins.**
3. **Object at the public hearing (8B), and organise your own public environmental review (8C).**
4. **Photograph everything, with dates and places, safely.**
5. **Reach an ecological organisation and a lawyer (8D), and challenge the permit or the protection-stripping (8E).**
6. **Build a broad, disciplined campaign and go public (8G/8H) — and be ready to defend a win.**

Kok-Zhailau was reopened.

Even lean, those six use the information and Aarhus routes where the public wins, protect the area, and build the campaign.

WHEN THE SYSTEM IS TILTED

Kazakhstan's tools are real, but the field is tilted, and you must plan for it.

When the state backs the project. Even a government mega-project can be beaten by a broad, legal, disciplined campaign — Kok-Zhailau was. Keep the framing legal and environmental, use the information and Aarhus routes, and build breadth.

When a win is reopened. This is the Kok-Zhailau caution: a project can return years later on the same land. Lock in protected-area status where you can, keep the coalition and documentation ready, and be prepared to fight again.

When protection is stripped. Removing a protected area's status to enable a project is a vulnerability — challenge it in court as unlawful.

When protest is risky. It is, in an authoritarian state. Prefer the information, hearing, and court routes; keep everything legal and environmental; protect the vulnerable; and never let the project matter more than a person.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Kazakhstan has real problems with the capture of major projects and opaque land and tender deals — Kok-Zhailau itself drew corruption allegations — so this matters.

How to spot it. Permits or protection-stripping against the evidence; opaque tenders and land transfers; hearings engineered to exclude; benefits to the connected while the public carries the harm.

Who's supposed to guard against it. The **Anti-Corruption Agency** handles graft. The **audit bodies** examine public money. The **courts** can quash a tainted permit or an unlawful protection-stripping, and enforce Aarhus. And Kazakhstan's **press and ecological organisations** have exposed captured projects.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep strictly to facts, the environment, and the law, never broad political accusation. Route serious evidence to the anti-corruption and audit bodies, the courts, and trusted journalists rather than making claims you can't back — the reprisal risk is real. Pair the exposure with the information case and the legal challenge.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, carefully. The documents build your proof; the protected area and the withheld information aim it; a broad public is the muscle; the hearings, the public review, and the courts press the case; the media raises the cost. Together they multiply. One at a time, they stall — and remember to defend the win.

Early on (weeks 1–8): nail down the project and the protected area; request the documents (and litigate any refusal under Aarhus); object at the hearings; start a public environmental review; photograph the baseline; build a broad, legal campaign and reach an organisation and a lawyer.

In the thick of it (months–years): litigate the information refusals, the permit, and any protection-stripping; deepen the public review and the campaign; open the media front — carefully.

The long haul (years): carry the litigation; lock in or restore protected-area status; keep the coalition alive; hold the line for an information win, a real hearing, a quashed permit, restored protection, delay — and defend the win against revival.

FINAL ASSESSMENT

Stopping a destructive project in Kazakhstan can be done — a whole city stopped a government ski resort in a national park, and won a Supreme Court ruling to protect it. Hold both truths. Kazakhstan's tools are real:

an assessment system with public hearings; a distinctive public environmental review with the public's own experts; genuinely usable courts on information and Aarhus rights, applied directly by the Supreme Court; and the shield of protected-area status. And the constraints are real: an authoritarian setting where protest is risky, protection that can be stripped, and wins that can be reopened.

Here's the discipline that wins. Anchor your case in the protected area and the law, force out the information — and where it's withheld, litigate it under Aarhus, where the public wins. Object at the hearings, mount your own expert review, and challenge a defective permit or an unlawful stripping of protection in the courts. Build a broad, disciplined, strictly legal and environmental campaign, carry the story to the country, and lock in protection where you can — then be ready to defend it, because a win can return to the same valley. Count an information win, a real hearing, a quashed permit, restored protection, delay, and a defended victory as wins alongside an outright ban. That's what Kok-Zhailau did — the public, the law, and Aarhus together. So can you — carefully.